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IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DEFENDANT TYLER JAMES ROBINSON'S REPLY IN SUPPORT OF MOTION TO CLOSE/SEAL PORTIONS OF PRELIMINARY HEARING (DKT. 513) Case No. 251403576 Honorable Tony F. Graf, Jr.
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Defendant, Tyler James Robinson, by and through his counsel of record, hereby files this supplement to the motion in limine filed May 1, 2026, seeking to close portions of the preliminary hearing and to seal exhibits. See Dkt. 513. This filing is based upon the State's Preliminary Hearing Witness and Exhibit List, filed May 6, 2026, and in response to the News Media's Opposition (Dkt. 546) and the State's Objection, both filed May 15, 2026.

**THE PARTIES AGREE THAT EXHIBITS SHOULD NOT BE
AVAILABLE FOR INSPECTION OR COPYING**

Mr. Robinson agrees with the State's conclusion in its Objection that:

...because some of the exhibits are likely to be used at a subsequent trial, the public and the media should be restricted from physically examining or copying them. In light of the vast amount of pre-trial publicity in this case, allowing the public or the media to physically inspect or copy the exhibits at this stage may "disrupt the efficient performance of justice," hamper judicial interests, or jeopardize Defendant's right to a fair trial.

State Objection, at 10 (quoting *State v. Archuleta*, 857 P.2d 234, 241-42 (Utah 1993)).

With this agreement in mind, the issue becomes what may be published to the gallery during the offering of the exhibits at the preliminary hearing.¹

EXHIBITS CLASSIFIED AS PRIVATE, PROTECTED, OR SAFEGUARDED²

The State also notes in its Objection that it intends to offer the exhibits to the Court but that the exhibits "are typically not published to the courtroom gallery." *State Objection*, at 7. The defense agrees this is the best approach to avoid possible duplication and inspection of the

¹ The State is correct that Mr. Robinson's motion does not address the Utah Rule of Judicial Administration 4-401.01 electronic media coverage factors. However, the electronic media have not yet made a request for recording and/or live streaming of the preliminary hearing.

² It is anticipated that the exhibits for the preliminary hearing will be withdrawn at the conclusion of the bindover decision. Should the State request to maintain the exhibits in the record, Mr. Robinson requests that the exhibits be maintained in the record consistent with the table of classifications herein.

exhibits through the video recording and/or live streaming of the hearing. Should this Court consider publication to the gallery, however, Mr. Robinson identifies below the exhibits the State intends to offer at the preliminary hearing, any pre-existing or requested designation, and the basis for designation. The purpose of so doing is to inform the Court as to which exhibits should not be publicly displayed during the hearing, in congruity with the Utah Rules of Judicial Administration, in addition to the request that the exhibits not be available to the public for inspection or copying.

As this Court noted previously, the parties need not file a motion to classify pursuant to Utah Rule of Judicial Administration 4-202.04 for filings (or information within filings) classified by the rules as private, protected, or safe-guarded. Utah Rule of Judicial Administration 4-202.02 classifies court records as “public or non-public.” The rule goes on to identify categories of classification noting, “[c]ourt records are public *unless otherwise classified by this rule.*” *Id.* 4-202.02(1) (emphasis added). The following classifications under Utah Rule of Judicial Administration 4-202.02 are relevant to the State’s exhibits:

- As private, “(4)(N) medical, psychiatric, or psychological records;”
- As private, “(4)(R) photograph, film, or video of a crime victim;”
- As protected, “(5)(J) record created or maintained... criminal.... enforcement purposes, if the record reasonably could be expected to:

(5)(J)(i) interfere with an investigation³;

³ While Mr. Robinson has already been charged with the aggravated murder of Mr. Kirk, two separate criminal investigations are underway and will continue at least through the conclusion of his trial. First, government agencies at the federal, state, and local levels continue to investigate the circumstances surrounding the shooting death of Mr. Kirk at UVU on September 10, 2025, and Mr. Robinson’s alleged role in the incident. It is well understood that criminal investigations in complex matters do not conclude with the filing of a criminal charge. Some post-filing criminal investigations result in the filing of new and additional charges, while others result in the amendment or dismissal of earlier-filed charges. At a minimum, additional evidence,

(5)(J)(ii) interfere with a fair hearing or trial⁴,”

both inculpatory and exculpatory, is frequently developed only as a result of continuing investigation and the passage of time.

The continuing nature of the government’s post-filing investigation is especially true when the government initially decides to seek the penalty of death in an eligible homicide prosecution. The Eighth Amendment to the United States Constitution requires a heightened standard of reliability in capital proceedings. *Caldwell v. Mississippi*, 472 U.S. 320. Here, Utah County’s elected chief prosecutor announced his decision to seek the death penalty against Mr. Robinson so early in the criminal investigation that it is impossible for him to have actually conducted a meaningful balancing of the aggravating and mitigating circumstances that counsel for or against seeking the penalty of death. Public speculation based upon publication by the media of preliminary hearing evidence that will lead to the identification of witnesses, relevant locations, and potential statements that have not yet been subject to investigation (either by the State or the Defense) or cross-examination, is likely to interfere with those future developments in the criminal proceeding, including making witnesses uncooperative or unavailable out of concern that they will become associated with the case.

Of equal significance under GRAMA, Mr. Robinson’s defense team is conducting its own, independent investigation, as the Sixth Amendment and ethical guidelines require. *See generally, Guidelines for the Appointment and Performance of Defense Counsel in Death Penalty Cases*, ABA (Rev. Ed. 2003), available at https://www.americanbar.org/groups/committees/death_penalty_representation/resources/aba_guidelines/2003-guidelines/. The ABA Guidelines specifically provide that “[c]ounsel at every stage have an obligation to conduct thorough and independent investigations relating to the issues of both guilt and penalty.” *Id.* at Guideline 10.7. There is no reason to believe that the only criminal investigations that the Utah Legislature sought to protect in designating records created or maintained for criminal enforcement purposes as “protected” are those conducted by law enforcement agencies. The investigation by counsel for a person under suspicion of having committed a criminal offense or who has been charged with a criminal offense must, under constitutional standards, be given the equal protection of Utah’s laws. “This provision requires that state laws treat similarly situated people alike unless a reasonable basis exists for treating them differently.” *State v. Herrera*, 1999 UT 64, ¶ 25.

⁴ The volume and vitriol of both formal and informal media coverage of the shooting death of Mr. Kirk and the prosecution of Mr. Robinson is so pervasive that this Court has already made findings that even images of Mr. Robinson shackled in the courtroom presents “a strong likelihood” that potential jurors will associate the images “with indicia of guilt.” Further, this Court found, “The danger of prejudice is compounded by technological advancements that allow the images to be manipulated in ways that do not accurately reflect the truth of the court proceedings.” Dkt. 137, at 5-6; Dkt 266, at 2. Just as this Court determined regarding images of Mr. Robinson in shackles, the danger of prejudice posed by duplication of evidence that has not been subjected to the rigors of cross-examination, nor satisfied the Utah Rules of Evidence for admissibility at trial, is strong and threatens Mr. Robinson’s presumption of innocence. Further,

- As protected, “(5)(O) record the disclosure of which would jeopardize life, safety, or property;”
- As safeguarded, “(8)(F) the following information about a victim or witness of a crime...

(8)(F)(i) business and personal address, email address, telephone number, and similar information from which the person can be located or contacted;

(8)(F)(ii) date of birth, driver’s license number, social security number, account description and number, password, identification number, maiden name, mother’s maiden name, and similar personal identifying information;

In addition, the rules note the “not exhaustive” list of interests served by non-public court records includes: protecting personal privacy, Utah R. Jud. Admin. 4-202(2)(A); protecting personal and public safety, *Id.* 4-202(2)(B); and to “protect non-parties participating in the court process, such as victims, witnesses,” *id.* 4-202(2)(E). These interests are likewise relevant to the classifications identified below.

Again, in an abundance of caution and to inform this Court’s determination on the potential publication of evidence, Mr. Robinson requests that those exhibits, or portions of exhibits, identified as private, protected, or safeguarded be displayed in such a way as to avoid memorialization through the anticipated recording and/or live streaming of the preliminary hearing:

any images, videos, or even reports that may be captured through recording or live streaming are subject to the same concern for manipulation.

Further, this Court has noted that, “This case generates extraordinary ongoing national and international attention, some of which is threatening in nature to the parties, their representatives, and non-party participants (e.g. witnesses and court personnel).” Dkt 266 at 2. Identifying potential trial witnesses through publication of exhibits has the potential of endangering the safety of witnesses and to make them unavailable for trial.

Exhibit	Description	Classification
1	Drone image of UVU	None
2	Drone image of UVU	None
3	Drone image of UVU	None
3.1	Photo of screwdriver	None
3.2	Daytime photo of perch	None
4	Photo of sniper perch	None
5	Photo of sniper perch	None
6	Video of mom and kids in crowd	“Photograph, film or video of a crime victim” are designated as private court records in UCJA 4-202.02(4)(R). Further, the statement of A.W. supports that the last portion of the video should not be made public to avoid publicizing the appearance of children and the witness. <i>See</i> UCJA 4-202(2)(A), (B), and (E).
6.1	Written statement (1102) of A.W.	This statement contains personal identifying information that should be safeguarded under Rule 4-202.02(8)(F) or classified as protected under (5)(O) as disclosure “would jeopardize life, safety, or property” of the witness. By definition, 1102 statements are out of court statements offered for the truth of the matter asserted, and inadmissible at trial unless an exception arises during trial. <i>See</i> Utah R. Evid. 802. Also of note, the substance of such statements would only become admissible if/when Mr. Robinson is given the opportunity to confront the witness. Therefore, the contents of the statement should be classified as protected under (5)(J)(i) and (ii).

7	Video of shooting from behind questioner	“Photograph, film or video of a crime victim” are designated as private court records in UCJA 4-202.02(4)(R).
7.1	Written statement (1102) of T.P.	This statement contains personal identifying information that should be safeguarded under Rule 4-202.02(8)(F) or classified as protected under (5)(O) as disclosure “would jeopardize life, safety, or property” of the witness. By definition, 1102 statements are out of court statements offered for the truth of the matter asserted, and inadmissible at trial unless an exception arises during trial. <i>See</i> Utah R. Evid. 802. Also of note, the substance of such statements would only become admissible if/when Mr. Robinson is given the opportunity to confront the witness. Therefore, the contents of the statement should be classified as protected under (5)(J)(i) and (ii).
8	Video of shooting from behind C. Kirk	“Photograph, film or video of a crime victim” are designated as private court records in UCJA 4-202.02(4)(R).
8.1	Written statement (1102) from TPUSA	This statement contains personal identifying information that should be safeguarded under Rule 4-202.02(8)(F) or classified as protected under (5)(O) as disclosure “would jeopardize life, safety, or property” of the witness. By definition, 1102 statements are out of court statements offered for the truth of the matter asserted, and inadmissible at trial unless an exception arises during trial. <i>See</i> Utah R. Evid. 802. Also of note, the substance of such statements would only become admissible if/when Mr. Robinson is given the opportunity to confront the witness. Therefore, the contents of the statement should be classified as protected under (5)(J)(i) and (ii).

9	Video of shooting from behind booth	“Photograph, film or video of a crime victim” are classified as private court records in UCJA 4-202.02(4)(R).
10	Photo of rifle in bushes	None
10.1	Rifle photo	None
10.2	Rifle photo	None
10.3	Rifle photo	None
11	Medical Examiner Report	“Medical, psychiatric, or psychological records” are classified as private court records under UCJA 4-202.02(4)(N).
12	UVU Surveillance from 9/10/2025 and Doorbell camera surveillance from 9/10/25	This video contains footage that could lead to the identification of the individual and residence of the individual providing the statement in Exhibit 13. As such, the footage should be classified as protected under (5)(O). Further, the video should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense’s ongoing investigation and Mr. Robinson’s right to a fair trial.
13	Written statement (1102) of C. N.	This statement contains personal identifying information that should be safeguarded under Rule 4-202.02(8)(F) or classified as protected under (5)(O) as disclosure “would jeopardize life, safety, or property” of the witness.
14	Written statement (1102) of Mike Mitchell	By definition, 1102 statements are out of court statements offered for the truth of the matter asserted, and inadmissible at trial unless an exception arises during trial. <i>See</i> Utah R. Evid. 802. Also of note, the substance of such statements would only become admissible if/when Mr. Robinson is given the opportunity to confront the witness. Therefore, the contents of the

		statement should be classified as protected under (5)(J)(i) and (ii).
15	Video at WCSO on 9/11/2025	The video should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense's ongoing investigation and Mr. Robinson's right to a fair trial. Further, this video contains footage of third-party witness(es) that could be readily identified by observers, thereby jeopardizing the "life, safety, or property" of the third-party witness(es).
16	Recorded statement (1102) of Lance Twiggs	By definition, 1102 statements are out of court statements offered for the truth of the matter asserted, and inadmissible at trial unless an exception arises during trial. See Utah R. Evid. 802. Also of note, the substance of such statements would only become admissible if/when Mr. Robinson is given the opportunity to confront the witness. Therefore, the contents of the statement should be classified as protected under (5)(J)(i) and (ii).
16.1	Text messages between TR and LT	The text messages should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense's ongoing investigation and Mr. Robinson's right to a fair trial. Mr. Robinson notes that although the contexts of the messages were publicly released by the prosecution at the outset of this case, the republication of evidence only serves to recirculate purported evidence that was improvidently released.
16.2	Discord chats	These images identify witnesses through usernames that may or may not still be in use by the witnesses on social media applications. Given that contact may be made directly with social media users by username, this information should be

		safeguarded under Rule 4-202.02(8)(F) as “similar information from which the person can be located or contacted” or as protected under (5)(O) as disclosure “would jeopardize life, safety, or property.” These chats also contain statements from non-testifying individuals.
16.3	Photo of note	The text messages should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense’s ongoing investigation and Mr. Robinson’s right to a fair trial.
16.4	FBI press release photographs	None
19	Photos of round 1 from rifle	The photograph should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense’s ongoing investigation and Mr. Robinson’s right to a fair trial.
20	Photos of round 2 from rifle	The photograph should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense’s ongoing investigation and Mr. Robinson’s right to a fair trial.
21	Photos of round 3 from rifle	The photograph should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense’s ongoing investigation and Mr. Robinson’s right to a fair trial.
22	Photos of round 4 from rifle	The photograph should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense’s ongoing investigation and Mr. Robinson’s right to a fair trial.
23	Photo of round from apartment	The text messages should be classified as protected under 5(J)(i) and (ii) as public

		disclosure will interfere with the defense's ongoing investigation and Mr. Robinson's right to a fair trial.
24	Photo of burnt note from apartment	The text messages should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense's ongoing investigation and Mr. Robinson's right to a fair trial.
25	Photo of targets from apartment	The text messages should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense's ongoing investigation and Mr. Robinson's right to a fair trial.
30	ATF DNA report (rifle and cartridges)	Mr. Robinson is in the process of procuring the expert witnesses for the preliminary hearing. Provided such witnesses are able to testify, Mr. Robinson does not include the report in his requests for relief. If unable to testify, the report should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense's ongoing investigation and Mr. Robinson's right to a fair trial.
31	FBI DNA report (towel, screwdriver)	Mr. Robinson is in the process of procuring the expert witnesses for the preliminary hearing. Provided such witnesses are able to testify, Mr. Robinson does not include the report in his requests for relief. If unable to testify, the report should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense's ongoing investigation and Mr. Robinson's right to a fair trial.
32	ATF Ballistics report	The report should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense's ongoing

		investigation and Mr. Robinson's right to a fair trial.
33	ATF DNA report (Dremel and cartridges)	Mr. Robinson is in the process of procuring the expert witnesses for the preliminary hearing. Provided such witnesses are able to testify, Mr. Robinson does not include the report in his requests for relief. If unable to testify, the report should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense's ongoing investigation and Mr. Robinson's right to a fair trial.
34	ATF Toolmarks report	The report should be classified as protected under 5(J)(i) and (ii) as public disclosure will interfere with the defense's ongoing investigation and Mr. Robinson's right to a fair trial.

Mr. Robinson notes that the numbering of the exhibits suggests the State may add additional exhibits. If this is the case, Mr. Robinson requests sufficient notice for the parties and the Media to address any additional closure/seal requests with the Court prior to the preliminary hearing. Given the length of time required to fully litigate closure motions, as ordered by the Court, Mr. Robinson requests that the Court order the State to provide notice of any additional evidence and/or witnesses at least 30 days prior to the preliminary hearing. Mr. Robinson notes that this Court has broad discretion to govern the proceedings and disclosure deadlines, even for a preliminary hearing, in a case such as this are not unreasonable. *See, e.g., Solis v. Burningham Enterprises Inc.*, 2015 UT App 11, ¶ 12, 342 P.3d 812 (“Trial courts have broad discretion in managing the cases before them” (quotation omitted)).

REQUEST TO CLOSE PORTIONS OF PRELIMINARY HEARING

Mr. Robinson maintains his request to close portions of the preliminary hearing where necessary to avoid the publication of testimony that is uniquely admissible at this stage of the proceeding as “reliable hearsay.”

The task of identifying what portions of the testimony may be “reliable hearsay” under Utah Rule of Evidence 1102 is amorphous. Based upon the State’s Preliminary Hearing Witness and Exhibit List, the State intends to call five law enforcement witnesses to testify. It is anticipated that the State will inquire about investigative facts to which the witness does not have personal knowledge, rather, testifying as to investigative facts observed and retold to the testifying witness by other law enforcement witnesses. *See* Utah R. Evid. 1102 (reliable hearsay includes “a statement of a non-testifying peace officer to a testifying peace officer”).

As this Court is aware, there are hundreds, if not thousands, of pages of investigative reports underlying this case. The State has identified some reports relevant to the listed witnesses, including a 229-page report from SBI. However, the report is the culmination of a plenary of interviews with witnesses and receipts of information and evidence from other agencies, including federal authorities. Without knowing what hearsay from these other officers (and if that communication itself relies on hearsay), Mr. Robinson cannot specifically identify what portions of the testimony are uniquely admissible at the preliminary hearing.

Therefore, out of an abundance of caution and a desire to inoculate the proceedings to prevent infecting the potential jury pool with inadmissible and prejudicial evidence, the Court should order the examinations of officers anticipated to testify to “reliable hearsay,” not within their personal knowledge and likely inadmissible at trial, to be conducted in a closed proceeding. Such a procedure will result in more efficient examinations and will prevent constant

interruptions by the parties making challenges on a statement-by-statement basis. After the conclusion of the hearing, if the Court determines that any of the closed testimony should later be released for public consumption, the Court always has the power to take those steps and can do so with the confidence that no inadvertent, inadmissible and prejudicial testimony will be elicited in a public proceeding before an objection can be heard and considered.

RESPECTFULLY SUBMITTED this 18th day of May, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 18th day of May, 2026, which served all attorneys of record.

/s/ Kathryn N. Nester
Kathryn N. Nester